

YOUNG v. RAMIREZ

23CV46514

PLAINTIFF'S MOTION TO ENTER JUDGMENT ON SETTLEMENT

This is a quiet title action to confirm an easement over defendant's real property. The parcels are adjacent and plaintiff gains access to Dogwood Road through defendant's real property. This matter was settled at a Mandatory Settlement Conference held October 9, 2023; Plaintiff now seeks to have the Court enter Judgment on the settlement pursuant to Code of Civil Procedure ("CCP") Section 664.6.

A dispute has arisen concerning the survey described in the settlement. To summarize, plaintiff's surveyor first provided a thirty-foot easement centered on the existing easement then, after receiving defendant's objections, reduced the width to eighteen feet. Defendant nevertheless refuses to execute and allow the recording of the Deed of Easement, wanting the width of the entire linear easement surveyed and reflected in the deed.

An enforceable settlement agreement under CCP §664.6 must, follow the statute, and either be entered into orally before a court or must be in writing and signed by the parties. (See *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.) These alternative requirements aim to minimize misunderstandings. Direct participation by the litigants ensures that the settlement results from their mature reflection and deliberate assent. (See *In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905; *Levy v. Superior Court* (1995) 10 Cal.4th 578, 585, fn. omitted.)

Here, the parties announced their settlement terms and agreement in open court and signed the Minute Order as drafted by the court that specified the terms of the settlement, including a statement as to the enforceability under CCP §664.6. All parties along with their counsel, reviewed the written settlement terms in open Court before signing; the Court then signed, adopting the terms of the settlement agreement and making the terms enforceable under CCP section 664.6. Notably, neither party, their counsel nor the court involved in the settlement conference contemplated expanding the easement in the agreement. The parties agreed to a thirty (30) day notice mechanism to address maintenance issues concerning trees. Defendant received specific instructions to prepare a formal settlement agreement, which should specifically state that no expansion or widening of the easement beyond the existing scope is allowed. The survey's description encompasses the *existing* easement which is not to be expanded; It does not expand the width of the existing easement but merely defines the area it lies within. The Court finds defendant's contention that the entirety of the easement must be surveyed and detailed in the deed is beyond the terms of the settlement agreement, and is covered sufficiently by the surveyor's amended description.

Plaintiff's Motion to Enter Judgment is **GRANTED**.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Judgment pursuant to CRC 3.1312 in conformity with this Ruling. Upon filing of the Judgment, defendant to record Deed of Easement incorporating the surveyor's amended description.